

IN THE MATTER OF AN INTEREST ARBITRATION

B E T W E E N:

The Regional Municipality of Niagara

(“the Region”)

- and -

Canadian Union of Public Employees, Local 911

(“the Union”)

AWARD

Before: Lindsay Lawrence, Chair
Greg Shaw, Employer Nominee
Wassim Garzouzi, Union Nominee

Appearances

For the Employer:

Daryn Jeffries, Counsel, Rae Christen Jeffries LLP
Daina Search, Counsel, Rae Christen Jeffries LLP
Richard Ferron, Chief, Niagara EMS
Jeff Garritsen, Associate Director Labour & Employee Relations & Employee Health
Peter Kennah, Labour Relations Manager
Karen Lutz, Deputy Chief, EMS Operations
Robert Law, Deputy Chief, EMS System Performance
Carolyn Chandler-Hill, Commander, EMS Land Ambulance Operations
Geordie Harris, Commander, EMS Communications

For the Union:

Chantelle Flowers, Union Advocate, Legal & Legislative Representative
Michael Maddock, CUPE Municipal Sector Coordinator
Marie Cantwell, CUPE National Representative
Jon Brunarski, Committee Member, Local 911

Melissa Nichol, Committee Member, Local 911
 Mike Gabrielli, Committee Member, Local 911
 Dave Barnett, Committee Member, Local 911
 Melissa Lacroix, Committee Member, Local 911
 Robynn Clarke, Committee Member, Local 911
 Cory Brunarski, Committee Member, Local 911

Hearing Date: November 13, 2024

1. This Board was appointed by the parties to resolve the outstanding terms for the renewal of their collective agreement, which expired on September 28, 2023. CUPE Local 911 (the “Union”) represents a bargaining unit of members providing paramedical and communications services, employed by the Regional Municipality of Niagara (the “Region”). The parties agree that this Board was properly appointed and that we have jurisdiction to resolve the issues remaining in dispute.

2. The parties have agreed that the collective agreement arising from this award shall have a two-year term, from September 29, 2023 to September 28, 2025.

3. Both parties filed detailed briefs with supporting materials. They also attended at a hearing and made oral submissions.

General considerations

4. In making its decision, the Board has been guided by the criteria set out in section 21(2) of the *Ambulance Services Collective Bargaining Act, 2001* (the “Act”):

21(2) In making a decision, the arbitrator shall consider the following factors and any other factors that he or she considers relevant:

1. The employer’s ability to pay, in light of its fiscal situation.
2. The extent to which services would have to be reduced in light of the decision, if current funding and taxation levels are not increased.

3. The economic situation in Ontario and in the municipality where employees in the bargaining unit provide services.
4. A comparison, as between the employees in the bargaining unit and other comparable employees in the public and private sectors, of the terms and conditions of employment and the nature of the work performed.
5. The employer's ability to attract and retain qualified employees.
6. The purposes of the *Public Sector Dispute Resolution Act, 1997*.
7. A comparison of the cost of providing ambulance services through members of the bargaining unit with the cost of providing those services through,
 - i. in the case of a public sector employer, employees who work for private sector providers of ambulance services, or
 - ii. in the case of a private sector employer, employees who work for other private sector providers of ambulance services.

5. Moreover, this Board has applied the established principles of interest arbitration. These principles were succinctly described in the most recent interest arbitration award between these parties: *Niagara (Municipality) v Canadian Union of Public Employees; Local 911*, 2023 CanLII 108790 (ON LA). The description of those principles is equally appropriate in the instant case:

3. ... Primary among those principles is the principle of replication and the associated principle of comparability. As always, it is the role of this board of interest arbitration to replicate to the greatest extent possible the agreement that these parties would have reached had they been able to resolve the matter in free collective bargaining. In this case, the replication exercise is highly informed by outcomes at comparable ambulance services.
4. We have also had particular regard to the principles of demonstrated need and total compensation. These principles constrain the overall monetary and other improvements the Union could reasonably expect to attain in a single round of bargaining. We also have regard to the mature nature of the bargaining relationship between these parties, and the incremental nature of collective bargaining.

AWARD

6. Having carefully considered the submissions of the parties, the criteria set out in the Act and the principles set out above, the Board makes the following award:

- **WAGES:**
 - December 31, 2023: 3.5%
 - September 29, 2024: 1.75%
 - December 31, 2024: 1.75%
- **MISSED MEAL BREAKS:**
 - Amend article 15.02 from \$15 to payment of \$22
- **MENTAL HEALTH:**
 - Increase to \$3,000 for full-time employees
Services provided by clinical psychologist, registered psychotherapist
and/or social worker with MSW designation

7. Wage increases are to be applied for all job classes in the bargaining unit, at all wage steps effective and retroactive to the dates stated above, for all hours paid by the Region to all bargaining unit employees on payroll. The increases to the payment in Article 15.02 (missed meal breaks) are effective as of the date of this award. The increase to mental health coverage is effective 45 days following the date of this award.

8. All remaining proposals not specifically addressed above are deemed dismissed. We remain seized in accordance with section 21(4) of the Act.

Dated at Toronto this 28th day of May, 2025.

“Lindsay Lawrence”

Lindsay Lawrence, Arbitrator

"I dissent in part"

Greg Shaw, Employer Nominee

"I dissent in part"

Wassim Garzouzi, Union Nominee